

**THE MINISTRY OF EDUCATION AND
TRAINING – THE MINISTRY OF
LABOR, WAR INVALIDS AND
SOCIAL AFFAIRS – THE MINISTRY
OF FINANCE**

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

No. 42/2013/TTLT-BGDĐT-BLĐTBXH-
BTC

Hanoi, December 31, 2013

JOINT CIRCULAR

ON EDUCATION POLICIES FOR DISABLED PEOPLE

Pursuant to the Law on disabled people dated June 17, 2010;

Pursuant to the Law on Education dated June 14, 2005 and the Law on the amendments to the Law on Education dated November 25, 2009;

Pursuant to Decree No. 36/2012/NĐ-CP dated April 18, 2012 of the Government defining the functions, tasks, entitlements and organizational structure of Ministries, ministerial-level agencies;

Pursuant to the Government's Decree No. 32/2008/NĐ-CP dated March 19th 2008, defining the functions, tasks, powers and organizational structure of the Ministry of Education and Training;

Pursuant to the Government's Decree No. 106/2012/NĐ-CP dated December 20, 2012, defining the functions, tasks, powers and organizational structure of the Ministry of Labor, War Invalids and Social Affairs;

Pursuant to the Government's Decree No. 215/2013/NĐ-CP dated December 23, 2013 defining the functions, tasks, entitlements and organizational structure of the Ministry of Finance;

Pursuant to the Government's Decree No. 28/2012/NĐ-CP dated April 10, 2012 of the Government on guidance on the Law on disabled people;

The Minister of Education and Training, the Minister of Labor, War Invalids and Social Affairs and the Minister of Finance jointly issue a Joint Circular on education policies for disabled people.

Article 1. Scope and regulated entities

1. This Joint Circular promulgates education policies for disabled people, including: admission and enrollment priority; exemption and reduction in several areas of subjects, subjects or educational activities in curriculum; evaluation of learning outcomes; policies on tuition fees; policies on scholarships and grants for equipment and school supplies.

2. This Joint Circular applies to disabled people who study in educational institutions teaching disabled people, centers providing mainstream education (hereinafter referred to as educational institutions), relevant organizations and individuals. This Joint Circular does not apply to disabled people who study at vocational training institutions.

Article 2. Admission and enrollment priority

1. Admission priority

Any disabled people who are 3 years older than regulated age for admission shall be eligible for admission.

2. Enrollment priority

a) Lower secondary schools and upper secondary schools

Disabled people are eligible for direct admission into upper secondary schools similarly to upper-secondary ethnic boarding school students and ethnic minority students as prescribed in Regulations of enrollment in lower secondary schools and upper secondary schools issued by the Ministry of Education and Training;

b) Professional secondary schools

Disabled people are eligible for direct admission into professional secondary schools as prescribed in Regulations of enrollment in professional secondary schools issued by the Ministry of Education and Training. Headmasters of professional secondary schools or schools providing professional secondary education according to the learning outcomes in general education of the student (transcripts), health and requirements of disciplines pertaining to direct admission into schools.

c) Universities and colleges

Profoundly disabled people shall be eligible for direct admission into universities or colleges. According to learning outcomes in general education (transcripts) and health of the profoundly disabled students and requirements of disciplines, headmasters of universities or colleges shall consider deciding direct admission.

Severely disabled people shall benefit from priority policies for entities when they register for admission into universities or colleges as prescribed in Regulations of enrollment in full-time universities or colleges issued by the Ministry of Education and Training.

Article 3. Exemption or reduction in several areas of subjects, subjects or educational activities in the curriculum

1. Disabled people under mainstream education who are entering general education curriculum. If a disabled person fails to conform requirements pertaining to general education curriculum, the headmaster of the educational institution shall decide to adjust, exempt, reduce or replace several areas of subjects, several subjects and educational activities which specifies in his/her Individual education plan.

2. Disabled people under segregation education who are entering segregated institutions or segregated classes in educational institutions in accordance with regulations of the Ministry of Education and Training pertaining to every type of disability. If a disabled person fails to conform to requirements pertaining to segregated education curriculum, the headmaster of the educational institution shall decide to adjust, exempt, deduct or replace several areas of subjects or several subjects or education activities which specifies in his/her Individual education plan.

Article 4. Evaluation of learning outcomes

1. Learning outcomes of disabled people shall be evaluated according to principles of encouragement of effort and improvement of the disabled people.

2. Regarding disabled people under mainstream education, their learning outcomes in subjects or educational activities that disabled people conform to requirements pertaining to general education curriculum shall be evaluated similarly to ordinary students but there is reduction in requirements pertaining to learning outcomes. Those subjects or educational activities that disabled people fail to conform to common requirements shall be evaluated according to outcomes of Individual education plan; the areas of subjects, subjects or educational activities eligible for exemption shall not be evaluated.

3. Regarding disabled people under segregation education, learning outcomes of subjects or educational activities that disabled people conform to requirements pertaining to segregated education curriculum shall be evaluated as prescribed in regulations in special education. The learning outcomes of subjects or educational activities that disabled people fail to conform requirements pertaining to segregated education shall be evaluated according to Individual education plan.

Article 5. Social promotion and award of diplomas

1. Compulsory education

Headmasters of educational institutions, education authorities shall consider social promotion of disabled people or certify their completion of primary education, award lower secondary diplomas, award upper secondary diplomas to disabled people who enter general education according to their learning outcomes of subjects, educational activities or their achievements in Individual education plan if they fail to meet general education.

2. Higher education and professional secondary education

Headmasters of higher education institutions or professional secondary schools shall consider awarding diplomas to disabled people according to their learning outcomes or educational activities which satisfy qualifications of the training program.

Article 6. Policies on tuition fees

Disabled people studying at educational institutions shall be eligible for exemption or reductions in tuition fees and grants for learning expenses as prescribed in Decree No. 49/2010/NĐ-CP dated May 14, 2010 on exemption or reductions in tuition fees and grants for learning expenses and collection and use of tuition fees in educational institutions of national education system from 2010 - 2011 to 2014 -2015 and Decree 74/2013/NĐ-CP dated July 15, 2013 of the Government on amendments to Decree No. 49/2010/NĐ-CP dated May 14, 2010 of the Government.

Article 7. Policies on scholarships and grants for equipment and school supplies

1. Disabled people in poor households or near poor households who enter educational institutions shall gain scholarships equivalent to 80% of basis salary prescribed in regulations of the Government every month.

Disabled people benefiting from policies who are studying at higher education institutions or professional secondary schools shall be awarded scholarships for 10 months per year; disabled people benefiting from policies who are studying at preschool education institutions, secondary education institutions, continuing education centers, segregated schools, centers providing mainstream education shall be awarded scholarships for 9 months per year.

These policies shall not apply to disabled people eligible for policies prescribed in Decision No. 152/2007/QĐ-TTg dated September 14, 2007 of the Prime Minister.

2. Disabled people in poor households or near poor households who are studying at educational institutions and eligible for funding for school supplies or equipment shall be received VND 1,000,000/person/year.

Disabled people benefiting different policies on grants for school supplies or equipment shall only benefit the best grant.

3. Public educational institutions having students who are disabled people shall be granted funding for learning materials and school supplies for disabled people ensure that it is kept to the minimum.

Every year, when the annual budget estimates are made, according to quantity of disabled people studying and their types of impairment, the educational institution shall prepare a plan for purchase (of special shared learning

materials and school supplies) and a detailed budget estimates, then send them to superior agency for approval, the superior agency shall synthesize and send them to the financial authority for consideration and approval. According to approved budget estimates and actual condition of the educational institution, the headmaster of the educational institution shall purchase materials and supplies as prescribed.

Article 8. Dossiers, procedures and methods of payment of scholarships and grants for equipment and school supplies provided for disabled people (hereinafter referred to as disabled equipment and supplies grants) prescribed in Clause 1 and Clause 2 Article 7 of this Joint Circular

1. Regarding disabled people studying at public educational institutions

a) Dossiers and procedures:

Within 30 working days from the start date of the school year, the headmaster of an educational institution shall inform disabled people studying at that educational institution (or their parents or guardians) of policies for disabled people and require them to submit a dossier, including:

- A certificate of disabilities issued by the competent agency as prescribed in regulations of law (notarized true copy);
- A certificate of poor household or near poor household issued by the People's Committee of commune, ward or town (notarized true copy).

According to Clause 1 and Clause 2 Article 7 of this Joint Circular, the Headmaster of the public educational institution shall carry out inspection, collate and take responsibility for the accuracy of the dossier, synthesize, prepare list and budget estimates to report to its superior agency for consideration and approval, and then the superior agency shall request the financial authority to approve such funding.

b) Methods of payment

Funding for implementation of policies on scholarships and equipment and supplies grants provided for disabled people studying at public educational institutions shall be allocated by annual budget estimates. According to the approved budget estimates of education, the educational institution shall manage the funding, give scholarships and supportive budget for purchase of school supplies or equipment for disabled people as prescribed in Clause 1 and Clause 2 Article 7 of this Joint Circular;

The budget estimates for policies on scholarships and disabled equipment and supplies grants shall be allocated concurrently with the annual state budget estimates, in which the budget estimate allocated to public educational institutions for policies on scholarships and grants for equipment and supplies provided for disabled people studying at such public educational institutions must be clarified.

When allocating budget estimates to implement policies on scholarships and disabled equipment and supplies grants, the public educational institution shall send an application for payment of scholarships and disabled equipment and supplies grants (containing: full names of disabled people, amounts of scholarships, amounts of support for supplies and total funding enclosed with documents (copies) on confirmation of entities as prescribed in Point a Clause 1 of this Article).

c) Scholarships and disabled equipment and supplies grants shall be offered twice a year: the first time is in September, October or November; the second time is in March, April or May. It must ensure the learning progress of disabled people. If a disabled person has not benefited from policies as prescribed in regulations on schedule, he/she shall be back paid in the succeeding period.

2. Regarding disabled people studying at non-public educational institutions

a) Dossiers and procedures:

Within 30 working days from the start date of the school year, the headmaster of an educational institution shall inform each disabled person studying at such educational institution (or their parents or guardians) of policies for disabled people and submit a dossier following procedures:

- If the disabled people study at educational institutions of districts, towns or cities affiliated to provinces (hereinafter referred to as the districts), the manager shall send dossiers to Committee divisions of education and training;
- If the disabled people study at educational institutions of provinces, the manager shall send dossiers to the Services of Education and Training;
- If the disabled people who have permanent residence in districts study at higher education institutions or professional secondary schools nationwide, the manager shall send dossiers to Committee Divisions of Labor, War Invalids and Social Affairs.

A dossier includes:

- A certification of educational institution (using the form prescribed in Appendix);
- A certificate of disabilities issued by the competent agency as prescribed in regulations of law (notarized true copy);
- A certificate of poor household or near poor household issued by the People's Committee of commune, ward or town (notarized true copy).

Non-public educational institutions must certify the application forms of applicants within 10 working days from the date on which the application forms are received.

b) Methods of payment:

- The Committee divisions of education and training shall manage and give scholarships and equipment and supplies grants for disabled people studying at educational institutions affiliated to the districts.
- The Services of Education and Training shall manage and give scholarships and equipment and supplies grants for disabled people studying at educational institutions affiliated to the provinces.
- The Committee division of education and training shall manage and give scholarships and equipment and supplies grants for disabled people who have permanent residence in the administrative division of the district and are studying at non-public higher education institutions or professional secondary schools nationwide.

c) Scholarships and disabled equipment and supplies grants shall offered twice a year: the first time is in September, October or November; the second time is in March, April or May. It must ensure the learning progress of disabled people. If a disabled person has not benefited from policies as prescribed in regulations on schedule, he/she shall be back paid in the succeeding period.

3. The agency in charge of payment shall announce procedures and time for payment of scholarships and disabled equipment and supplies grants in order for the disabled people or their families to benefit from policies as prescribed.

Article 9. Cutting of scholarships and grants for equipment and school supplies

1. If a disabled person drops out or is dismissed from school shall be cut scholarships and disabled equipment and supplies grants from the date on which he/she drops out or is dismissed from school.

If a disabled person awards scholarships and disabled equipment and supplies grants before dropping out or being dismissed from school, he/she is required to make a refund of received amounts to the agency in charge from the date on which he/she drops out or is dismissed from school.

2. The public educational institution where the disabled person drops out or is dismissed from school must send notification to its superior agency; the non-public educational institution where the disabled person drops out or is dismissed from school must send notification to the Committee division of education and training, Committee division of Labor, War Invalids and Social Affairs, Services of Education and Training within 15 working days from the date on which the disabled person drops out or is dismissed from school to cut the scholarships and disabled equipment and supplies grants.

Article 10. Funding

The funding for scholarships and disabled equipment and supplies grants shall be allocated by annual estimates for education and training of local governments, Ministries, agencies and central governments as follows:

1. The funding for scholarships and equipment and supplies grants provided for disabled people studying at public educational institutions under management of the local governments and non-public educational institutions shall be allocated by annual estimates for education and training of the local budget. Central budget shall allocate according to following rules:

a) Granting 100% funding for provinces or cities whose budgets have been not balanced and Quang Ngai province;

b) Granting 50% funding for provinces or cities which transfer under 50% of their budget to central budget;

c) Regarding local governments transferring revenues to central budget, they shall use their local budgets to implement policies partly or wholly; if there is deficit in revenue due to objective reasons or low revenue increases: after using 50% revenue increase of local budget (if any) and 50% of provision for local budget allocated by the Prime Minister, if the budget still faces deficit, it shall be covered by the central budget;

d) Other local governments shall implement policies using their local budget.

2. The funding for scholarships and equipment and supplies grants provided for disabled people studying at public educational institutions under management of Ministries or agencies shall be ensured wholly by the central budget and ensured by the annual estimates for education and training expenditures of Ministries or agencies.

Article 11. Preparation of estimates, adherence and settlement of funding

1. Every year, according to Directive of the Prime Minister on formulation of socio-economic development plan and state budget estimates; Circular of the Ministry of Finance on formulation of annual state budget estimates; number of beneficiaries, People's Committees of provinces, Ministries, agencies and central agencies shall prepare estimates for funding and include it estimates for expenditures on government budget of local governments, Ministries and agencies, and then send them concurrently with annual state budget estimates.

2. According to Decision on state budget estimates of the Prime Minister:

a) People's Committees of provinces shall request People's Council of provinces to decide to allocate funding as prescribed in regulations of the Law on State budget and this Joint Circular;

b) Ministries, agencies and central agencies shall decide allocation of funding for affiliated educational institutions.

3. The adherence to estimate and settlement of funding for scholarships and disabled equipment and supplies grants prescribed in Article 7 of this Joint Circular shall be carried out according to current regulations of the Law on State budget, guiding documents and Index of current government budget.

4. Every year, Ministries, agencies, central authorities, People's Committees of central-affiliated cities and provinces shall synthesize and send reports on implementation of policies on scholarships and disabled equipment and supplies grants to the Ministry of Education and Training and the Ministry of Finance at the end date of the school year.

Article. Effect

1. This Joint Circular comes into force from March 5, 2014.

2. If documents prescribed in this Joint Circular are amended or replaced with new documents, the latter documents shall be applied.

3. Difficulties that arise during the implementation of this Circular should be reported to the Ministry of Education and Training in order for the Ministry of Education and Training takes charge and cooperates with the Ministry of Labor, War Invalids and Social Affairs and the Ministry of Finance in consideration and solution./.

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